

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
AGUSTIN LOPEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, LT ANDREW
JOHNSON, LT DARRIEN C. KING, PO ISIDORE
J. RODRIGUEZ, PO KENNOL C. THOMAS,
PO RAJINDRA BHARATH, PO JOHN HAASE,
PO LUIS MORENO AND OTHER NYPD POLICE
OFFICERS PRESENTLY UNKNOWN TO
PLAINTIFF,

Defendants.

-----X

INDEX NUMBER: _____ DATE FILED: _____

ACTION NOT BASED UPON CONSUMER CREDIT TRANSACTION

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiffs' attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: June 28, 2019

Defendants' addresses:

The City of New York
c/o N.Y.C. Law Department
100 Church Street, 4th Floor
New York, New York 10007

LT Andrew Johnson
LT Darrien C. King
PO Isidore J. Rodriguez

Plaintiff designates
Bronx County as
the place of trial.

The basis of venue is
the place of occurrence.

SUMMONS

Plaintiff resides at:
541 Union Ave.
Bronx, New York 10455

County of Bronx

Yours, etc.

Paul H. Schietroma, P.C.

By: Paul H. Schietroma

Paul H. Schietroma
Attorney for Plaintiff
2663 Coney Island Avenue, 2nd Fl.
Brooklyn, NY 11223
(212) 714-2100

PO Kennol C. Thomas
PO Rajindra Bharath
PO John Haase
PO Luis Moreno
c/o N.Y.P.D. 40th Precinct
257 Alexander Avenue
Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
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OFFICERS PRESENTLY UNKNOWN TO
PLAINTIFF,

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff by his attorney, Paul H. Schietroma, P.C. complaining of the defendants,
upon information and belief, respectfully alleges as follows:

THE PARTIES

1. Agustin Lopez resides at 541 Union Ave, Bronx, N.Y. 10455.
2. Defendant the City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant LT Andrew Johnson ("Johnson") was, on January 20, 2019 and presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 40th Precinct, in Bronx County, New York.
4. Defendant LT Darrien C. King ("King") was, on January 20, 2019 and presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 40th Precinct, in Bronx County, New York.
5. Defendant PO Isidore J. Rodriguez ("Rodriguez") was, on January 20, 2019 and

presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 40th Precinct, in Bronx County, New York.

6. Defendant PO Kennol C. Thomas ("Thomas") was, on January 20, 2019 and presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 40th Precinct, in Bronx County, New York.

7. Defendant PO Rajindra Bharath ("Bharath") was, on January 20, 2019 and presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 40th Precinct, in Bronx County, New York.

8. Defendant PO John Haase ("Haase") was, on January 20, 2019 and presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 40th Precinct, in Bronx County, New York.

9. Defendant PO Luis Moreno ("Moreno") was, on January 20, 2019 and presently, an employee of the defendant City of New York, more particularly its Police Department and assigned to the 40th Precinct, in Bronx County, New York.

10. On January 20, 2019 the above individual defendants were acting within the scope of their employment with the City of New York when they responded to 541 Union Avenue, Apt 2D, Bronx, NY.

11. On April 5, 2019, within ninety days of the occurrence herein, plaintiff served upon the City of New York his Notice of Claim setting forth the time when, the place where, and the manner in which the claim arose.

12. More than thirty days have elapsed since the presentation of said Notice of Claim and no adjustment or payment has been made by the City of New York or the

individual defendants.

13. At the request of the City of New York, plaintiff submitted to an oral examination on June 27, 2019.

14. This action is being commenced within one year and ninety days of the date of the occurrence herein and plaintiff has complied with all statutory conditions precedent to the commencement of this action.

THE OCCURRENCE

15. On January 20, 2019 at approximately 1:00 pm, Agustin Lopez was in his home at 541 Union Avenue, Apt 2D, in Bronx County, N.Y.

16. At the above time and place, there was a knock on his door.

17. He told his daughter, Destiny Lopez, to answer the door.

18. When she did, several of the individual defendants burst into his home.

19. Three of the individual defendants entered the kitchen where Agustin Lopez was.

20. These three individual defendants ordered Agustin Lopez to “come outside.”

21. Agustin Lopez was momentarily stunned.

22. Agustin Lopez’s wife, Maria Lopez, yelled “he doesn’t speak English.”

23. These three individual defendants grabbed Agustin Lopez and pushed him out of his apartment into the hallway.

24. These three defendants and others piled onto Agustin Lopez, pushed him to the floor and handcuffed him.

25. Defendant Rodriguez then tasered Agustin Lopez.

26. An ambulance was called.

27. Agustin Lopez was taken to Lincoln Medical Center.

28. Upon discharge from Lincoln Medical Center, Agustin Lopez was taken to the 40th Precinct at 257 Alexander Avenue, in Bronx County, N.Y.

29. Agustin Lopez was then taken to Central Booking in Bronx County.

30. He was thereafter released without ever seeing a judge.

31. The aforesaid occurrence and resulting serious personal injuries, including but not limited to his left knee and lower back, infliction of emotional distress, psychological injuries and public humiliation and embarrassment, were due solely to the recklessness and objectively unreasonable use of force by the individual defendants involved, as well as their abuse of power in arresting Agustin Lopez without a warrant or probable cause and without any fault or wrongdoing on the part of the plaintiff contributing thereto.

32. The aforesaid acts were all in violation of the plaintiff's constitutional rights under both the United States and New York State Constitutions and were perpetrated by the defendants under color of state law.

33. Each cause of action which follows falls within one or more of the exceptions set forth in CPLR §1602, including sub-paragraphs 1(b), 2,5,7 and 11.

AS AND FOR A FIRST CAUSE OF ACTION
FOR ASSAULT UNDER STATE LAW

34. Plaintiff repeats and realleges each and every allegation contained above in paragraphs "1" through "33" inclusive with the same force and effect as if hereinafter set forth at length.

35. The individual defendants, within the scope of their employment as N.Y.C.

police officers, on January 20, 2019 intentionally put Agustin Lopez in apprehension of imminent harmful or offensive contact in rushing into his home, entering his kitchen and lunging at him.

36. As a result of defendants' conduct plaintiff suffered mental anguish, emotional distress, shock, fright and apprehension.

37. By reason of the foregoing plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, punitive damages against each of the individual defendants in an amount to be fixed by a jury, reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
FOR BATTERY/EXCESSIVE FORCE UNDER STATE LAW

38. Plaintiff repeats and realleges each and every allegation contained above in paragraphs "1" through "37" inclusive with the same force and effect as if hereinafter set forth at length.

39. The individual defendants, within the scope of their employment as N.Y.C. police officers, on January 20, 2019 intended to, and did, make bodily contact with Agustin Lopez.

40. That this conduct was harmful and offensive.

41. That the individual defendants made contact without privilege or Agustin Lopez's consent.

42. That in effectuating this battery, the individual defendants lacked justification and reasonable cause to use excessive force including seizing Mr. Lopez, pushing him out

of his home, forcing him to the floor, handcuffing him and tasing him.

43. By reason of the foregoing plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, punitive damages against each of the individual defendants in an amount to be fixed by a jury, reasonable attorneys' fees, costs and disbursements of this action.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR FALSE ARREST UNDER STATE LAW**

44. Plaintiff repeats and realleges each and every allegation contained above in paragraphs "1" through "43" inclusive with the same force and effect as if hereinafter set forth at length.

45. The individual defendants on January 20, 2019 intended to, and did, confine Agustin Lopez.

46. Agustin Lopez was conscious of this confinement.

47. Agustin Lopez did not consent to this confinement.

48. His confinement was not otherwise privileged.

49. By reason of the foregoing plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, punitive damages against each of the individual defendants in an amount to be fixed by a jury, reasonable attorneys' fees, costs and disbursements of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, RETENTION AND SUPERVISION
UNDER STATE LAW**

50. Plaintiff repeats and realleges each and every allegation contained above in paragraphs "1" through "49" inclusive with the same force and effect as if hereinafter set

forth at length.

51. The defendant City of New York, more particularly its Police Department, has a duty to use reasonable care in the employment, training and supervision of its employees to determine if they are competent to do their work without danger of harm to others.

52. The actions of the individual defendants here, demonstrated a psychological disposition to escalate encounters with the public, not diffuse them, making their conduct the problem, not the plaintiff.

53. The defendant City of New York, more particularly its Police Department, knew or should have known that the individual defendants had a violent disposition, making them unfit to serve as police officers, and failed to use reasonable care to identify and remove them.

54. The defendant City of New York, more particularly its Police Department, knew of facts that would lead a reasonably prudent person to conduct an investigation which would have uncovered the bad disposition of the individual defendants, but failed to do so.

55. Their continued functioning as police officers on January 20, 2019 is due to the breakdown of the chain of command in the New York City Police Department to live up to its mission statement of “courtesy, professionalism and respect.”

56. The actions of the individual defendants here, to deny the plaintiff his rights, demonstrate their lack of fitness to hold the position as a police officer.

57. The failure of the defendant City of New York, more particularly its Police Department, to adequately screen, train, evaluate, supervise and discipline the behavior of the individual police officers involved is evidence of the reckless lack of regard for the rights of citizens, including plaintiff, and demonstrates a lack of due care which prudent and reasonable

individuals in the New York City Police Department's chain of command should show in executing their duties.

58. The continued employment of the individual defendants presents a clear and present danger to the residents of the City of New York.

59. By reason of the foregoing plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, punitive damages against each of the individual defendants in an amount to be fixed by a jury, reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR NEGLIGENT TRAINING AND SUPERVISION
UNDER STATE LAW

60. Plaintiff repeats and realleges each and every allegation contained above in paragraphs "1" through "59" inclusive with the same force and effect as if hereinafter set forth at length.

61. Upon information and belief, the defendant City of New York failed to use reasonable care in the training and supervision of the individual defendants who violated plaintiff's civil rights.

62. By reason of the foregoing plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, punitive damages against each of the individual defendants in an amount to be fixed by a jury, reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR FALSE ARREST UNDER FEDERAL LAW

63. Plaintiff repeats and realleges each and every allegation contained above in paragraphs "1" through "62" inclusive with the same force and effect as if hereinafter set forth at

length.

64. The individual defendants on January 20, 2019 intended to, and did, confine Agustin Lopez.

65. Agustin Lopez was conscious of this confinement.

66. Agustin Lopez did not consent to this confinement.

67. His confinement was not otherwise privileged.

68. A police officer's use of force is "excessive" and in violation of the Fourth and Fourteenth Amendments to the United States Constitution if it is "objectively unreasonable in light of the facts and circumstances known to the officers."

69. Under the facts and circumstances existing at the time of this occurrence:

- a) The severity of the alleged crime at issue was minimal.
- b) Agustin Lopez did not pose an immediate threat to the safety of the officers involved or others.
- c) Agustin Lopez did not actively resist his arrest nor did he attempt to evade arrest by flight.

70. Pursuant to Federal Civil Rights Law 42 USC §1983 Agustin Lopez was deprived of his federal constitutional and statutory rights under color of state law to be free from excessive force and wrongful arrest.

71. 42 USC §1983 provides in part that:

every person who, under color of state law, subjects or causes to be subjected any citizen of the United States . . . to the deprivation of any rights, privileges, or immunities secured by the United States' Constitution and federal laws shall be liable to the party injured.

72. 42 USC §1983 creates a remedy for violations of constitutional and federal rights.

73. That the individual police officers' conduct was under color of state law.

74. That the individual police officers' conduct deprived Agustin Lopez of the right not to be subjected to "excessive force and wrongful arrest" as protected by the Constitution of the United States and the Fourth and Fourteenth Amendments thereto.

75. That the individual police officers conduct caused the injuries and damages sustained by Agustin Lopez.

76. By reason of the foregoing plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, punitive damages against each of the individual defendants in an amount to be fixed by a jury, reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
FAILURE TO INTERVENE UNDER 42 U.S.C. §1983

77. Plaintiff repeats and realleges each and every allegation contained above in paragraphs "1" through "76" inclusive with the same force and effect as if hereinafter set forth at length.

78. The individual defendants had an affirmative duty to intervene on plaintiff's behalf to prevent the above-referred violations of his constitutional rights.

79. The individual defendants failed to intervene on plaintiff's behalf to prevent the violation of his constitutional rights despite having had realistic opportunities to do so.

80. As a result of the aforementioned conduct of the individual defendants, plaintiff's constitutional rights were violated.

81. By reason of the foregoing plaintiff is entitled to compensatory damages in an amount

to be fixed by a jury, punitive damages against each of the individual defendants in an amount to be fixed by a jury, reasonable attorneys' fees, costs and disbursements of this action.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action, with interest from January 20, 2019 for the following relief:

- a) Compensation for violation of his constitutional rights, pain, suffering, mental anguish and humiliation; and
- b) Punitive damages against each of the individual defendants;
- c) Attorney's fees, costs and disbursements; and
- d) For such other and further relief as this Court deems just and proper.

Dated: June 28, 2019

Yours, etc.

Paul H. Schietroma, P.C.

By: Paul H. Schietroma

Paul H. Schietroma

Attorney for Plaintiff

2663 Coney Island Avenue, 2nd Floor

Brooklyn, NY 11223

(212) 714-2100

VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS)

SS.: _____

Paul H. Schietroma, an attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

I am the attorney for the plaintiff in this action, that I have read the foregoing **Complaint** and upon information and belief, believe the contents therein to be true, based upon the communications, papers, reports and investigations contained in the file.

The reason this verification is made by me and not by the plaintiff is that the plaintiff resides outside the county in which I maintain my office.

Dated: June 28, 2019

Paul H Schitrone

Paul H. Schietroma

NOTICE OF ENTRY

PLEASE take notice that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

PAUL H. SCHIETROMA, P.C.
Attorney for Plaintiff(s)

Office and Post Office Address
2663 Coney Island Avenue, 2nd Fl.
Brooklyn, NY 11223

To:

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on at 9:30 a.m.

Dated,

Yours, etc.

PAUL H. SCHIETROMA, P.C.
Attorney for Plaintiff(s)

Office and Post Office Address
2663 Coney Island Avenue, 2nd Fl.
Brooklyn, NY 11223

To:

Attorney(s) for

Index No.:

Year:

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BHARATH, PO JOHN HAASE, PO LUIS MORENO
AND OTHER NYPD POLICE OFFICERS
PRESENTLY UNKNOWN TO PLAINTIFF,**

Defendants.

SUMMONS AND COMPLAINT

PAUL H. SCHIETROMA, P.C.
Attorney for Plaintiff(s)

Office, Post Office Address and Telephone
2663 Coney Island Avenue, 2nd Fl.
Brooklyn, NY 11223
(212) 714-2100